

Introduction

The *Municipal Government Act* in Alberta describes the council as “the governing body of the municipal corporation and the custodian of its powers, both legislative and administrative” (Alberta, 2020). The role of councillors is to “participate generally in developing and evaluating the policies and programs of the municipalities” (Alberta, 2020). This policy and service delivery is not easy. The Ontario Municipal Councillor’s Guide states, “After a few months in office, you may feel overwhelmed by the variety of matters demanding your attention. You may be challenged by complex issues, faced with controversial policies ...” (2019, Role).

This week we turn our attention to the complexities of municipal policy-making and service delivery. Both are key functions that contribute to the health, well-being, sustainability, and development of the municipality. As you work through this module, please reflect on earlier modules about municipal relationships, the structure of local governments, and municipal finance because they are important to policy and service delivery. The module will build on your knowledge of these areas and explore additional content.

Topics and Learning Objectives

Topics

- Municipal policy-making
- Municipal service delivery
- New directions in policy and service delivery

Learning Objectives

By the end of this module, you should be able to:

- Describe the municipal policy-making role and process
- Describe the range of municipal services and service delivery options
- Explain how municipal policy relates to service delivery challenges
- Contribute to a case study discussion on policy-making

Readings

Reading

Please Note: You can access all non-textbook readings through the One-Stop Course Readings in the Table of Contents in your D2L Brightspace course.

Required

1. Multilevel policy from the municipal perspective: A pan-Canadian survey. Canadian Public Administration, pp. 270-293.
2. Eidelman, G. (2025). Reflections on who does what. IMFG @ 20.
3. Eicker, U. (2021, v26). Opinion: Municipalities must take leadership on climate. Concordia University.
4. Johnson, N. (2023, December 04). Uber launches lawsuit over 'bad faith' council vote, calls on court to overturn ridesharing cap. CTV News Toronto.

Required for Case Study Discussion

Spicer, Z., Lyons, J. & Graham, K. (2020). *Local government in practice: Cases in governance, planning, and policy*. Toronto: Emond Montgomery Publications.

- Banning Plastic Bags (pages 271–275)

What Is Policy?

What do we mean when we use the term “policy”? Dye (1972) famously described policy as what governments do or don’t do. Pal (2009) broadened the definition to include policy as a course of action or inaction chosen by public authorities to address a given problem or interrelated set of problems. Manning (2008) argued that policy is part of the political process and institutions of modern society and that issues, problems, and policies are also political.

Policy is concerned with how issues are defined, positioned, and dealt with in the public and political sphere. It is about what and how a decision is made about an issue.

Policy Models

Policy-making is complex and there are a number of models that try to make sense of policy processes. As you read through the four models described below, think about which of these models best fit with your experience in nonprofit policy-making. Why?

Tab Panels (expanded):

Tab: Rational Policy Process

A rational approach to policy-making is just that – rational! It begins with a problem that can be identified and defined. The next step is to identify all the ways of addressing the problem and

then to analyze the different alternatives. After assessing the implications of each of the options, one would assess the costs and benefits, as well as the outcomes of the options. After the analysis has been completed, the policy maker would choose the best option to address the policy problem.

Unfortunately, policy problems are not always rational. It can be hard to properly define the problem. Different interests have different perspectives on what the problem is. Is low income due to an inadequate minimum wage, a lack of a guaranteed minimum wage, family status (single-parent families have higher incidence of low income than two-parent families), high housing costs (housing typically represents more than 50% of low income expenditures), a lack of education (to get a better paying job), globalization and economic changes, or other issues?

Once the problem is defined, it can also be difficult to comprehensively identify all the options. Policy makers don't have perfect knowledge and may not know about some alternatives. They may also bring a value base to the process that may preclude some options from consideration and affect the analysis. It is similarly hard to analyze the options – there can be issues of lack of information, difficulty measuring costs and benefits, and challenges identifying the implications and outcomes of the options. In addition, the rational model assumes that implementation will follow a decision on policy option. Unfortunately, implementation is not always a rational process either!

The rational policy approach assumes that the policy analyst/planner is value free, objective, and has perfect knowledge. Rational policy-making is more of a technical process with the policy maker as the expert.

A variation on the rational approach is called satisficing. It limits the analysis to the most satisfactory of the options identified, recognizing that knowledge is limited.

Tab: Incrementalism

Incrementalism is sometimes called the science of muddling through. It recognizes that change, including the development of policy, is an incremental process with a goal of making smaller, marginal change toward a policy goal rather than one big change. It can incorporate the views of policy makers, policy implementers, and other stakeholders, and it recognizes power structures and organizational relationships. Policy-making is a less structured process than in the rational approach, and the policy maker is important but less central to the process.

Tab: Garbage Can Theory

John Kingdon (2003) proposed the garbage can theory to explain how seemingly unrelated social/ environmental problems and policy solutions wound up together. This approach recognizes that there are many actors that are part of the policy process and that they have

different agendas and understandings of the policy problem, and they are independent of each other. The policy environment changes based on interest groups, politics, ideology, etc. This model suggests that they float around in a garbage can and that when the actors and the environmental conditions are right, there is recognition of a policy problem and a policy window (or opportunity) opens. This open window can lead to some action on the policy issue or it can close again. The window opens when the problem affects many people, when it is counter to existing values or opinions, or when it arises from other public policies. The garbage can approach recognizes the important role of politics and stakeholders/interests in the policy process.

Tab: Punctuated Equilibrium Framework

This policy development model focuses on how governments will move slowly over extended periods and then move into a brief active period of more major policy change. This is a model established first in the field of paleontology to explain fossil records (Moloughney, 2012) but explains how the pace of legislative change often shifts.

Influences on Public Policy

James Lightbody defines the local policy environment as the “complex of public institutions and processes that frames the authoritative allocation of scarce resources and that locates values into the community” (2006, 69). Many social, political, and economic influences that shape municipal decisions about policy are often interconnected. Depending on the issue and the stage in the policy process, some influences will have more of an impact than others.

Pause and Reflect

What are some influences that you can identify on municipal policy?

Take a few minutes before you click on the content below and consider whether the influences you identified are internal or external influences.

Click-n-reveal: Internal Influences on Municipal Policy

- Ideas raised by councillors and the mayor – individually or through committees or council
- Ideas from staff

- Municipal capacity and resources – the municipal budget and fiscal position sets limits on available financial resources. Municipal capacity will also affect the policy process in terms of knowledge and expertise of the issue and capacity to undertake policy analysis.
- Past policy decisions and approach to municipal services – municipalities may be comfortable with an approach to policy and municipal service that has developed over time and is the “way things are done.” This path dependency may restrict their interest in considering different approaches to policy issues.

Click-n-reveal: **External Influences on Municipal Policy**

- Demographics, values, and ideologies have an impact on policy – perceptions, culture, values, and public opinion are important influences on the definition of the “problem,” the options identified for consideration, and the decisions ultimately made.
- Regulation, constitutional authority, and jurisdictional constraints – the course content has included many examples of jurisdictional and legal constraints on municipalities that get in the way of effective municipal policy, and of provincial oversight and control that override municipal policy decisions in areas where municipalities have authority. These constraints directly affect the capacity of a municipality to make policy as well as the range of policy options available to the municipality for consideration.
- Globalization and economic forces – municipalities are affected by globalization, particularly through financial decisions about investments, locations for production, and technology-enabled economies, interest rates for borrowing, international financial ratings of municipalities, etc.
- Physical setting and geography also affect the definition of policy “problems” and choices and provide some boundaries for those problems.
- Research, evaluation, best practices, and knowledge of issues will directly affect municipal policy.
- Interests and interest groups influence which issues get attention and how they are framed.
- Technology and data have implications for how an issue is framed, the range of options identified, how people are engaged in discussing an issue, and the choices about how to proceed.

Policy Actors

The main actors in the municipal policy process include:

- Elected mayors and councillors
 - Staff (the bureaucracy or public service)
 - Unions
 - Service recipients and clients
 - Voters
 - Municipal agencies, boards, and commissions
 - Other levels of government (regional, provincial, federal)
-
- Interest groups
 - Civil society
 - Private sector businesses/corporations
 - Media
 - Academics, think tanks, and foundations
 - Municipal associations like the Federation of Canadian Municipalities and/or provincial associations of municipalities

Did You Know?

A survey of Canadian municipal mayors and councillors found that the federal, provincial, and regional governments; civil society; and the private sector were involved in some way in all the main municipal policy areas (Lucas & Smith, 2019). While these findings provide evidence of multi-level governance and collaboration on policy, they also raise questions about the level of municipal autonomy and ownership of municipal policy areas.

Policy actors can bring issues to the attention of local government, inform the development of policy options, influence the council decision, and shape implementation. Let's look at two of these actors in more detail.

Public Servants/Bureaucracy

The bureaucracy or public service plays a key role in the development and implementation of public policy. The bureaucracy is supposed to be a neutral agent that acts on government direction and implements government policy.

As discussed in Module 5, the bureaucracy is organized into central departments like finance, communications, corporate strategy, human resources, and IT and operating departments like transportation, parks and recreation, culture, and hard services (water and garbage).

Staff raise issues, provide advice, and develop and assess policy options for review and approval by the municipal council. While the public service doesn't "make" policy, they enjoy a fair bit of influence in the policy process through their knowledge and history with the issues and relationships with other policy actors.

Staff can also influence policy through the implementation of approved policy. Frequently, staff are required to interpret broad legislation into processes and programs that can work effectively in all communities and fit within the existing program/policy structure. This gives them considerable discretion regarding the policy interpretation. Policy implementation often involves drafting new bylaws and regulations – again, an opportunity for interpretation and application of bureaucratic discretion. Bureaucrats will also make decisions (or provide advice) about how the services will be provided and who will provide them. Will they be delivered by government or through third party providers? If the latter, who will be contracted to provide the services – nonprofits or private sector firms?

Policy Communities

Pross (1995) argued that each policy or issue area is specialized and discrete and that it has a policy community – an identifiable group of participants. This community includes all actors such as government agencies and officials responsible for a particular policy area as well as politicians, advocacy groups, civil society, interest groups, institutions, businesses, the media, and other individuals who are interested in the policy area and are trying to influence it.

These different policy actors try to get the attention and respect of the government so that they can be included in ongoing consultations/discussions about the policy issue. This is of benefit to both the policy maker and the policy actor because they will get access to information, expertise, and input that they may not have otherwise been able to access. The policy community collaborates on the development of the public policy and may play a public role to support or advocate for the policy area if it is being questioned or under threat.

Policy Tools

There is a range of tools available to policy makers, including non-decisions, indirect action, and direct action (Inwood, 2009).

Non-decisions – Municipalities may choose to do nothing because of a lack of resources, lack of jurisdiction or authority, the problem isn't a priority, or getting involved would set a precedent. They may do nothing if they think the problem will self-correct (Pal, 2009) or they may establish a symbolic task force or advocate for action to another level of government.

Indirect action – In other cases, municipalities may focus efforts on information sharing and public education in an effort to change behaviour. They may add or reduce fees to influence behaviour or approve a broad plan but without the required resources. Indirect action can include tactics that

municipalities use to make it look like they are taking action and responding to issues – Peterson calls this symbolic manipulation (Peterson as referenced in Sancton, 2015).

Direct action – Municipalities intervene directly through services and programs, the establishment of a special purpose body, or funding to a nonprofit or for-profit to deliver programs on behalf of the municipality. They also regulate activities or behaviours through bylaws or regulations. Municipalities recently determined whether they would allow cannabis retail shops and, if so, they developed bylaws to regulate their location in communities (i.e., not close to schools). In an emergency, like COVID-19, municipalities can declare a state of emergency, which gives them additional powers.

Community Gardens and Municipal Policy Tools

Here are some examples of indirect and direct policy tools used at the municipal level as part of an initiative to establish community gardens:

Information	▼
An information package on organizing, operating, and sustaining community gardens will be developed and made available for distribution to community groups, housing associations and developments, nonprofit organizations, businesses, and public sector offices throughout the city (The Food Security Projects, 2005, 30).	
Public education	▼
Public health educators and city planners will be engaged to work collaboratively to design an educational program on the benefits of preserving green space for food production targeted at private landowners, including developers, business operators, and homeowners (The Food Security Projects, 2005, 30).	
Legislation	▼
A minimum of 25% of current public green space will be available for urban food production within each voting district of the municipality (The Food Security Projects, 2005, 30).	
Regulation	▼

The development of unused or vacant land or the redevelopment of land for public purposes will be required to maintain a certain percentage of that land for green space, and a minimum of 25% of the green space will be available for urban food production (The Food Security Projects, 2005, 30).	
Grants	▼
The “Community Garden Development Grant” will be established to provide one-time start-up grants to community groups committed to starting community gardens (The Food Security Projects, 2005, 31).	
Expenditures	▼
A minimum of one new municipal position will be created for a Green Space Coordinator who will oversee the implementation of this policy (The Food Security Projects, 2005, 31).	
Taxes	▼
Property taxes will be increased where private land development or redevelopment does not comply with the regulations of this policy. (Note this does not apply to current private land unless it is being redeveloped.) (The Food Security Projects, 2005, 30)	
Public ownership	▼
Public green space converted for use in urban food production by community groups will thereafter be considered under shared public ownership between the municipality and the community group; future decision-making regarding the space will be done so collaboratively (The Food Security Projects, 2005, 30).	

Traffic Congestion and Municipal Policy Tools

This example shows the traffic congestion options approved and in use in 29 Canadian municipalities and organizations. Not all policy tools were effective in certain communities and some tools weren't acceptable to local communities. In general, there was a municipal reluctance to use price-related tools and mechanisms (Public Sector Digest, n.d.). The graph shows a range of policy measures, including pricing, technology, expenditures, information, and regulation and that municipalities use multiple policy tools to have an impact on issues like traffic congestion.

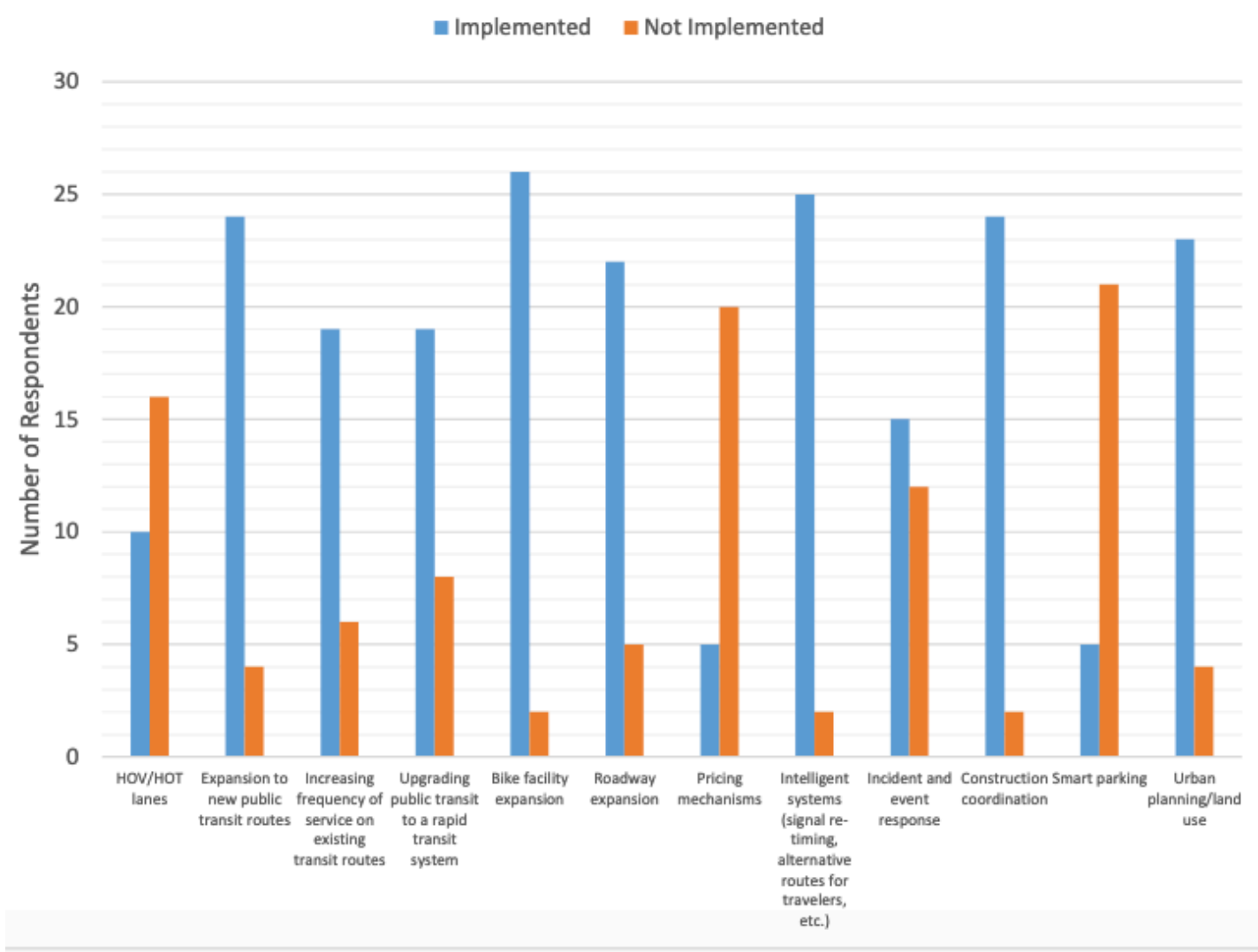


Figure 9.1. Approved traffic congestion options

Source: Public Sector Digest, n.d., 21.

Long Description +

The bar graph shows the number of municipalities that implemented and didn't implement different options to address traffic congestion:

Municipal Traffic Congestion Options	Implemented (number of municipalities)	Not Implemented (number of municipalities)
HOV/HOT lanes	10	16
Expansion to new public transit routes	24	4
Increasing frequency of service on existing transit routes	19	6
Upgrading public transit to a rapid transit system	19	8
Bike facility expansion	26	2
Roadway expansion	22	5
Pricing mechanisms	5	20
Intelligent systems (signal retiming, alternative routes for travelers, etc.)	25	2
Incident and event response	15	12
Construction coordination	24	2
Smart parking	5	26
Urban planning/land use	23	4

Policy Development Cycle

Notwithstanding the models described earlier, the policy process generally involves a number of stages. They may not be equal in importance, and the movement between them may be fluid and non-linear. Some may even take place at the same time.

The policy-making process is dynamic and offers opportunity for ideas, influences, input, and advocacy from the many interests.



Figure 9.2. Seven stages of the policy cycle

Source: Policy NL, n.d., The Policy Cycle

Long Description +

This visual provides an example of a policy cycle. It includes seven stages:

- Issue identification and definition
- Policy research and analysis
- Generating policy solutions and alternatives
- Consultation
- Developing policy proposals
- Policy implementation
- Policy monitoring and evaluation

Issues can be raised by any of the municipal policy actors but there needs to be a decision, generally from council or a committee, to do something about the issue. Generally, a motion will be tabled which frames the issue, determines the scope, and provides guidance to staff, who will be tasked with conducting research and bringing forward recommendations.

Getting an issue on the policy agenda is not easy. Think about the range of issues in your local municipality – housing, traffic congestion, recreation fees, ageing water infrastructure – and the range of interests – business, families, seniors, children, renters, and homeowners. There is a lot of competition for attention at the municipal level. Sometimes issues get on the agenda because of how they are framed by advocates – anti-pesticide activists framed pesticides as a trade-off between children’s health and cosmetic, non-essential use of pesticides for nice lawns (Pralle in Spicer et al., 2020, 243). Other times they get on the agenda because of the strength of the policy community that has formed around the issue or because of the influence of elites. Issues can be raised by staff, from evaluations or from learning from good practices in other municipalities. Sometimes, municipalities are required by the province to take action, such as when municipalities in Ontario had to determine whether they would allow cannabis shops and the conditions under which they would allow them.

Assuming approval of the motion, the next steps of the process are referred to staff within the bureaucracy. Staff conduct research and analysis and develop options. Recommendations are made through reports to either a standing committee or directly to council. Staff have significant influence over the policy process in the amount of information included, the manner in which they appraise the alternatives, and in the range of options and recommendations presented to the decision makers.

For controversial issues, the council may decide to set up a task force or advisory committee to investigate the situation and the available options. Why might they do this? It can allow them to assess public opinion on the issue; enables the municipality to benefit from outside knowledge and experience; postpones the controversial decision; and allows for a broader assessment of the range of options available. Membership on these ad hoc bodies can include municipal councillors, residents, experts, and interest groups.

There are opportunities for input throughout the process. Interested stakeholders may be engaged directly in the process through polls, surveys, consultations, open houses, steering committees, and other opportunities. Stakeholders may provide input directly to a councillor or the mayor and they can apply to make formal deputations to the relevant committee of council.

The policy decision isn’t the end of the process. If a change is approved, the public service will be required to implement the change as well as monitor and evaluate the outcomes and impact of the decision. It is difficult for council to supervise or control implementation. Many municipal councillors are part-time, they lack the program-specific knowledge, and they may not have access to information or the ability to supervise and assess the implementation. On the other hand, council has influence over staff, they have budget controls and accountability systems, and they can give precise instructions to the public service through their council decisions. In addition, council has the authority to structure and restructure departments that are not performing or adequately implementing their decisions.

Municipal Policy Approval Process

Reflect on the municipal decision-making meetings that you attended and the reports and recommendations that were considered at these meetings. These recommendations will, by the end of the approval process, have gone through a journey similar to the one shown below.

While Figure 9.3 outlines the approval process at the City of Toronto, it is similar to the type of process in other municipalities.

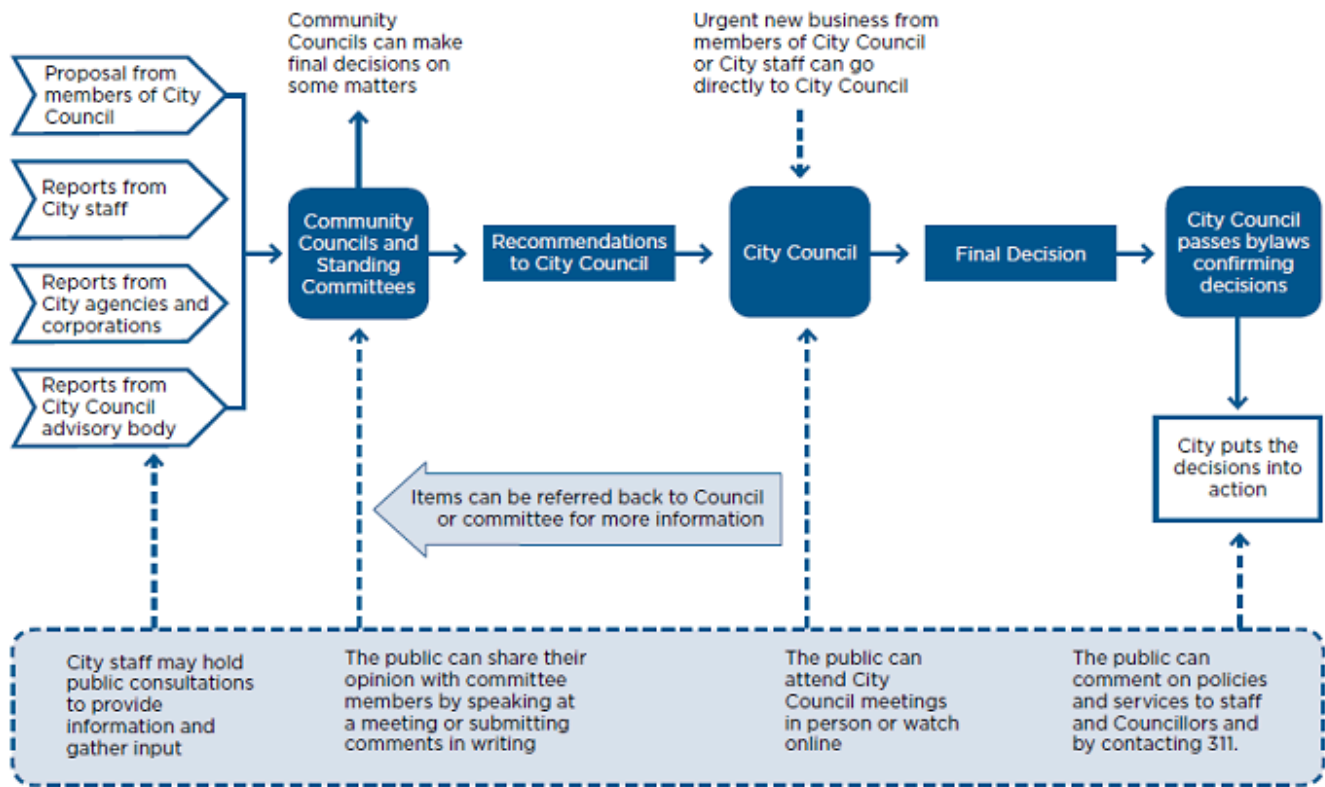


Figure 9.3. Policy and decision-making process at the municipal level (City of Toronto)

Source: Toronto. (n.d.). City of Toronto's Governance System, Council and Committee Structure

Figure 9.3 illustrates the City of Toronto's governance system and how policy works its way through the process to get approved. There are four main stages:

Stage 1: Proposals from members of city council, reports from city staff, reports from city agencies and corporations, reports from city council advisory body. City staff may hold public consultations to provide information and gather input from the public.

Stage 2: These reports and proposals are sent to the standing committees or community councils where they are discussed and recommendations are made. Members of the public can attend these meetings and can submit written comments or speak to the committee about their support or opposition for the proposals.

Stage 3: Recommendations are sent to city council for approval. Council can approve the recommendation or can send the item back to the standing committee or community council for more information or consideration. The public can attend city council meetings or watch the proceedings online.

Stage 4: When city council makes a final decision, they must pass bylaws to confirm their decision and take steps to implement the decision. The public can continue to comment on policies and services by contacting their councillor or by calling 3-1-1 (in Toronto).

Traffic Calming Example

Here is an example of the approval process for a request for traffic calming measures in a local municipal street in Toronto. As you can see, regulations and other procedural requirements can quickly complicate a policy scenario.

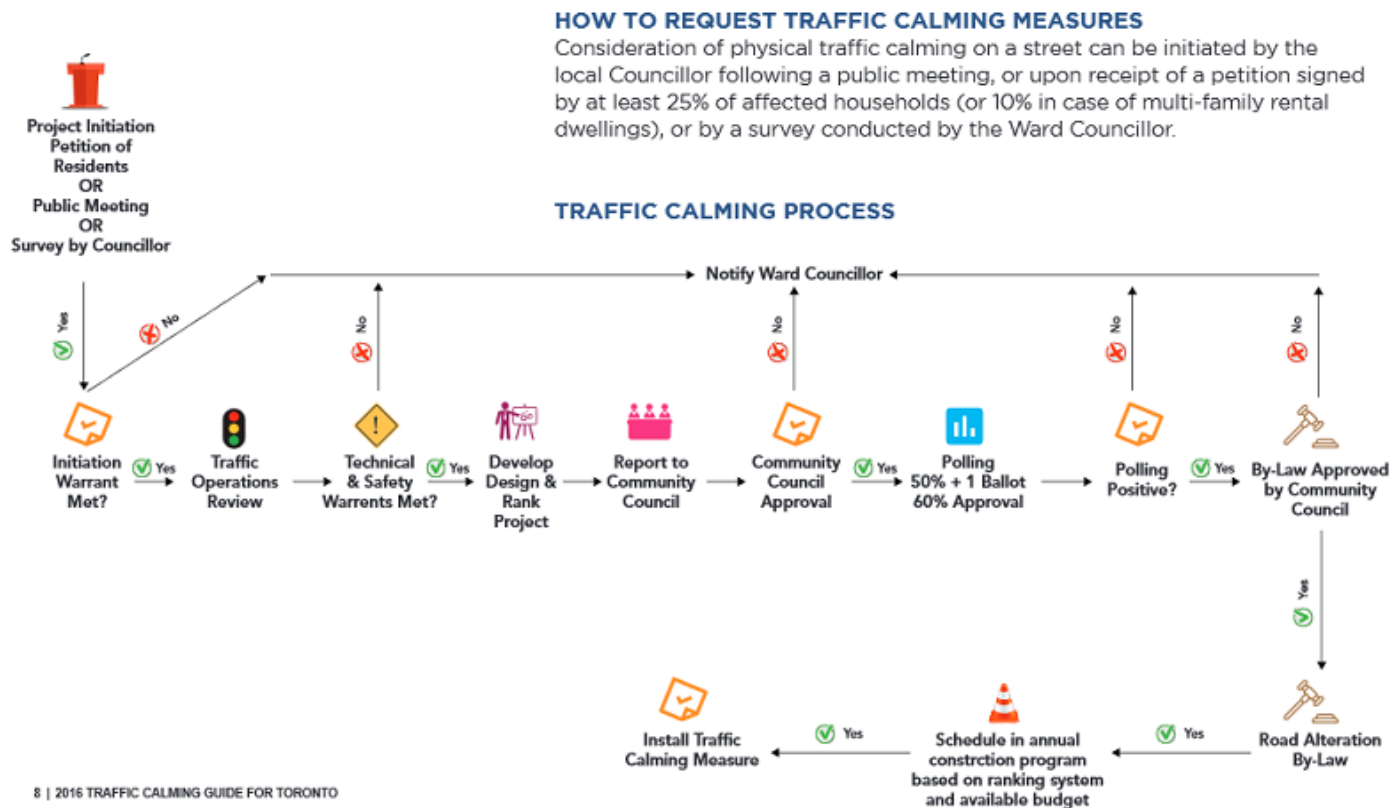


Figure 9.4. Approval process for a request for traffic calming measures

Source: Toronto. (2016). Traffic Calming Guide for Toronto. City of Toronto, Transportation Services Division. 8.

Long Description +

This visual provides an example of the many steps in getting traffic calming measures on a local street. It includes seven stages:

- The process is initiated by a petition from residents, public meeting, or a request from a councillor
- Staff assess the situation to see if a “warrant” (sufficient need) is met
- Staff review traffic operations
- Staff review technical and safety requirements

- Staff develop a design and rank the project among the other projects
- Staff report to the community council
- Community council approves, rejects, or sends it back to staff for further work
- Staff conduct polling in the local neighbourhood
- If the polling results are positive, staff will prepare a bylaw
- Community council approves, rejects, or sends the bylaw back to staff for further work
- A road alternation bylaw is prepared
- Staff add the project to the annual construction program based on its ranking and the available budget
- At some point, depending on ranking and budget, the traffic calming measures are installed

Pressures on Policy Process

In addition to challenges related to lack of resources, value- and perception-based constraints, and legal and jurisdictional constraints, there are other pressures on the municipal policy-making process.

Tab Panels (expanded):

Tab: Structural Constraints

There are many structural constraints on municipal policy. Policy issues often cross boundaries and it can be hard for one municipality to develop a policy that includes regulation, fees, or requirements if a neighbouring municipality doesn't have one. Municipal agencies, boards, and commissions are responsible for a number of municipal services and there can be gaps, overlaps, or fragmentation in policy developed by these different municipal bodies. In addition, municipalities have limited internal capacity to develop, implement, monitor, and evaluate policy – councils must prioritize policy initiatives based on available financial and staff resources.

The four-year term of office for municipal mayors and councillors may contribute to a short-term view of policy options and a reluctance to act on controversial policy matters, as the election date gets closer. Most municipal councillors are elected in ward-based elections, which emphasize issues that are important at the neighbourhood and community level. While there may be some discussion of broad municipal issues, it is limited, and few (if any) councillors run broad, issue-based campaigns. The lack of political parties makes it even harder to get consensus on policy priorities – municipal candidates aren't running on policy platforms (Stewart & Smith, 2007). Many municipal councillors are part-time and have limited political staff support, while the limited formal powers of the mayor may weaken the mayor's ability to advocate for and lead policy

change. Finally, municipalities don't have a cabinet-like political executive to determine and manage a policy agenda (Henstra, as referenced in Spicer et al., 2020). Stewart and Smith (2007) argued that municipalities need parliamentary systems in place (like the federal or provincial systems) with full-time elected officials, staff support, adequate pay, political parties, and an executive or cabinet-like group to play a stronger policy role.

Tab: Policy Actors

Municipal staff tend to be professional accountants, planners, engineers, etc., who aren't always skilled at policy, yet they have responsibility for policy development (Henstra as referenced in Spicer et al., 2020). In addition, they are very influential in the policy process to the extent that the term "bureaucratic capture" is used to describe the ability of municipal staff to significantly influence policy outcomes – in effect, the bureaucracy captures the policy process and determines the outcome.

The final stage of the policy process involves a report to committee and council prepared by staff with recommendations for action. That report must be "signed-off" by a senior manager. David Siegel suggests that the need for senior staff "sign-off" of the recommendations results in more conservative, less risky policy advice (as referenced in Spicer et al., 2020).

Interest groups can be effective advocates for policy development or change, but they can also be vocal and effective barriers to change. Not-in-my-backyard or NIMBY is the term used to describe neighbourhood groups that oppose change to their neighbourhood or community. Members of municipal councils must choose whether to represent their local constituency as delegates and vote against an unpopular policy initiative or act as trustees and vote in the way that they think is best for the municipality.

Developers and business interests also bring pressure on municipal councils because municipalities need businesses and development to generate new revenues and help grow the municipality.

Tab: Constraints in the Policy Process

The policy cycle is a useful way of understanding municipal policy, but policy is messy and much less rational than presented in the visual earlier in this module. Municipalities have limited time to develop policy and there is limited information – it isn't possible to know everything about the topic or to consider all the alternatives (remember the concept of satisficing discussed earlier).

In addition, there are fewer "knowledge generators" (Lindquist as referenced in Dobuzinskis et al., 2007) or municipally oriented think tanks or research groups at the municipal level than at the provincial or federal levels (Stewart & Smith, 2007). This means that there are fewer ideas and less research-based knowledge about municipal issues, which often leads to greater interest in

what other municipalities are doing about the issue. Interest in best practices has extended to policy areas and has resulted in diffusion of policy – copying or adapting policy – among municipalities (Spicer et al., 2020, 272).

Policy development is often incremental; policy makers focus on one policy at a time. Efforts are made to align with policy at other levels of government and within the municipality, but these efforts vary in success and sometimes, policy has unintended consequences for other program or policy areas. In addition, the environment isn't fixed – some policy can take a year or more from the initial decision to take action to the final decision on what action to take. During that time, the context and environment continue to change, making it difficult to develop policy to respond to an issue that is changing in scope or form. As a result, municipal policy development is more likely to lead to incremental or symbolic change – adjustments and revisions using current tools rather than new policy approaches.

Are Municipalities Policy Takers or Policy Makers?

When municipalities focused on property-related service delivery, these challenges were not a problem; however, as they deal with more complex issues like the impact of climate change, globalization, and inequality, the challenges can get in the way of effective municipal policy action.

Tindal et al. (2017) conclude their chapter on municipal policy by suggesting that municipalities are at a policy crossroads – they face increasingly complex problems, yet they have limited capacity to address them.

Municipalities have responded in different ways, either grudgingly accepting, muddling through the existing constraints, or by taking a path around these barriers. We talked about some of these new paths in Module 6 when we looked at different relationships that municipalities are developing with other municipalities, business, civil society, and provinces and the federal government. Approaches like new regionalism and multi-level governance give municipalities opportunities to leverage influence, resources, and support for policy change and to respond proactively to complex municipal issues. These new paths are somewhat enabled by policy retrenchment (Tindal et al. 2017, 381) at both the federal and provincial levels, which has created an opportunity for municipalities, as well as revised municipal acts based on natural person powers and spheres of jurisdiction. Reduced provincial funding for municipalities has weakened the regulatory relationship – municipalities don't have to do follow provincial regulations and requirements if there is no funding attached.

Consider and respond to the following poll question. Then, click on the green sections below for more details on each.

Do you think municipalities are policy takers or policy makers?

☐ Policy takers

☐ Policy makers

Submit

Click-n-reveal: **Policy Takers**

Andrew Sancton comments that “Canadian local governments generally make policy by responding to some kind of external pressure to do something” (Sancton, 2015, 251). In other words, they are policy takers. Municipalities take policy given to them by provinces and must comply with regulations in order to receive grants or cost-sharing for some programs. In addition, municipalities face a range of constraints (discussed in an earlier module page), which limits their capacity to demonstrate policy leadership.

Other times, it may be appropriate for municipalities to “take” policy from another level of government, like in the case of Uber. Uber disrupted traditional municipal regulations and challenged municipalities to respond to new e-capitalism. Municipalities tried to respond in different (often piecemeal) ways: Vancouver and Montreal prohibited Uber, impounded vehicles, and issued fines; Calgary got a court order to stop Uber drivers from working without commercial insurance and a commercial driver’s licence; and Toronto pursued a similar injunction that was rejected by the provincial court. Eventually, some provinces stepped in with broad regulation. Valverde (2018) argued that broader jurisdictions like provinces need to play a role to regulate new sectors, like ride-sharing services, that have different economic foundations and use new technologies.

Click-n-reveal: **Policy Makers**

There is lots of evidence that municipalities are policy makers. An analysis of council meeting minutes for three municipalities from 2015–2017 found that all councils were making policy decisions in non-traditional areas and that small and medium-sized municipalities were just as likely to make policy decisions that move beyond the traditional municipal policy areas (Vanhooren, 2018). A study of environmental issues and the Great Lakes, between Canada and the U.S., found that local government has been demonstrating leadership in policy areas and pushing the limits of their formal authority (Mills & Gore, 2016).

The municipality of Hudson, Quebec introduced the first legislation in Canada banning pesticides (as discussed in Module 6) and successfully defended it in the courts; Toronto influenced the development of health promotion in Canada and internationally with the Healthy City initiative; Ottawa and Toronto passed the first Canadian municipal bylaws restricting smoking in public buildings in 1976 and 1977; and Kitchener introduced the first recycling program in Canada. Municipalities advocate for change in policy at the provincial and federal levels and provide evidence from municipal pilot projects to support new program models and approaches.

Municipal Service Responsibilities

Municipalities provide a wide range of services and supports, including libraries, parks, recreation programs, public health programs, bylaw enforcement, parking, building inspection and approval, social services, social housing, child care, culture, economic development, tourism, roads, transit, sewers, water filtration and treatment, flood control ... the list could go on.

Some of the service responsibilities are consistent across all provinces, but others vary. For example, the table below shows that municipalities in Ontario and Alberta have responsibilities in health prevention and some health services and in social assistance.

[illegible]

Municipal Responsibility	NL	PEI	NS	NB	QC	ON	MB	SK	AB	BC
Sewage Collection & Disposal	X	X	X	X	X	X	X	X	X	X
Garbage/Waste Collection & Disposal	X	X	X	X	X	X	X	X	X	X
Recreation & Culture	X	X	X	X	X	X	X	X	X	X
Housing					X	X			X	
Regional Planning & Development	X	X	X	X	X	X	X	X	X	X

(Source: Tassonyi & Conger, 2015, 4).

Service Delivery

Many of these services are delivered by municipal staff or through municipal agencies, boards, and commissions. Others are delivered through partnerships with the private sector or the nonprofit sector. In addition, there is increasing interest in partnerships with other levels of government through various online and service initiatives.

Municipal Service Delivery

Canadian municipalities employ more staff than either the federal or provincial and territorial governments (Statistics Canada, n.d.) and deliver a wider range of services and programs to the public than the other two levels.

Municipal Agencies, Boards, and Commissions

Municipalities may establish special purpose bodies to deliver services on their behalf. The City of Toronto established the Board of Management of the Toronto Zoo to “run” the zoo; Toronto Community Housing Corporation is a municipal social housing provider; and Toronto Hydro operates an electricity distribution system in Toronto. These services are delivered based on the expectations detailed in a legal arrangement (shareholder direction) between the city and its agency, board or commission.

Contracted Service Delivery

As discussed in Module 8, the ongoing financial crunch facing municipalities has caused them to look to other service delivery mechanisms and approaches. This has led to new relationships, public-private partnerships, contracting out, and privatization. They share the goal to lower municipal costs by reducing total costs of the service, including labour costs (often by replacing union workers with lower paid non-union workers). Under contracting out, municipalities stop delivering a service through their own

employees and instead contract with a company to provide it to standards set by the municipality. Privatization turns over a previous government service to a business to own and run. It involves government getting out of the service responsibility completely; examples include municipal arenas, pools, water filtration plants, roads, and prisons.

Nonprofit organizations provide a range of services either under contract with the municipal government or through grant program funding. Typically, they are in the human and social services area although they also extend into arts, culture, the environment, and other areas.

Some services are better candidates for alternate service delivery approaches than others. What factors would you consider important in deciding how and who should deliver a municipal service? Level of risk? Ability to define the service so delivery can be measured and monitored? Product versus human services? Degree of client contact? Complexity of delivery? Financial implications? Capital budget implication?

Shared Services

There is continued interest in shared services, where municipalities enter into an agreement to share services with another municipality. The shared services approach can include:

- Automatic aid – Municipalities are usually required to provide automatic aid to another municipality under the municipal act, but many municipalities enter into specific automatic aid agreements regarding fire protection and emergency services.
- Joint hiring – Municipalities may share in the hiring (and compensation) of a staff member, perhaps if the municipalities are small and can't support or afford a full-time staff member or if the staff member has specialized skills and experience that both municipalities need.
- Contracts – Municipalities may provide services for another municipality under contract with that municipality.
- Purchasing group – Municipalities may form a joint purchasing group to take advantage of economies of scale and lower prices.
- Joint services – Municipalities may form a committee or board or establish a special purpose body to provide services on behalf of a number of municipalities. Municipalities jointly invest in and govern the joint services body.

Ninety percent of the 400 municipalities in Ontario that responded to a survey reported at least one shared service with another municipality (AMTCO, 2012, 2). Shared services included planning, building, bylaw enforcement, roads maintenance, libraries, recreation facilities, purchasing, facility management, land fill operation, water and wastewater, and more (AMTCO, 2012, 2).

Key Service Issues

What are some of the key service issues facing municipalities today? To some extent, it depends on who you are talking to, where they are in Canada, and the size and unique characteristics of the municipality they are talking about.

Case Study

The Toronto Star newspaper asked nine civic leaders what they think are the most pressing problems facing Toronto. [Read what the civic leaders had to say about key issues.](#)

Cornerbrook, Newfoundland Mayor Jim Parsons speaks to Municipal World CEO Susan Gardner about issues and challenges in [Mayor Jim Parsons: Facing Challenges, Opportunities in Atlantic Canada](#) [11:28].

A survey of mayors and councillors in Canadian municipalities with a population of 5,000 or more reported that the “number one issue for municipalities regardless of size is economic development, since job creation and attracting investment are key for a healthy municipality regardless of its location or infrastructure” (Lucas & Smith, 2019, 1).

Lucas and Smith (2019) grouped municipal service issues into traditional services, like snow removal and potholes, and new services, like homelessness and climate change. Larger municipalities faced additional service and policy challenges, like transit, housing, and immigrant settlement. There was some regional variation across Canada as well as some variation in importance of the issues by province. The bread and butter issues, in the table below, are consistent across municipalities, while the big city issues varied based on population and increased understanding of the problem/issue.

Bread and Butter Issues	Big City Issues
Big Four Planning and land use Water supply Roads, highways, and bridges Economic development	Growers – as population goes up, the perceived importance of the issue increases Homelessness Culture and the arts Housing Public transit Climate change
Next Five Issues Emergency planning Parks and recreation Public health Solid waste Policing	Surgers – important in the largest municipalities; perceived as surges in importance rather than related to population growth Immigrant settlement Poverty reduction

(Source: Lucas & Smith, 2019, 11)

As is evident in the table, most issues facing municipalities aren't property related and they aren't purely local (Bastedo & Graham, 2018). Increasingly, municipal issues are those where the federal and provincial governments play roles – housing, immigrant settlement, mental health, and economic development – but the issue is “felt” at the municipal level. “[W]hen disaster strikes or environmental questions arise in response to a new technology, residents often turn to the leaders of their local government – the level of government closest at hand – demanding that ‘government’ take action” (Mills & Gore, 2016, 165).

An Angus Reid poll reported satisfaction about service access and delivery at three levels of government over a six-month period of time in 2021-22. Respondents reported greater levels of satisfaction of municipal services (71%) than either provincial (67%) or federal (55%) service. The satisfaction results by province for municipal services were reasonably consistent and higher than the other levels of government (Angus Reid, 2022).

Service Monitoring and Performance

Municipalities are often challenged about service effectiveness and efficiency – whether services make a positive difference and whether the services are being provided in a way that best uses municipal resources.

Many municipalities undertake service reviews or audits that look at whether the services are effective and efficient. Municipalities measure their performance and compare their performance to other municipalities through benchmarking initiatives. The [Municipal Benchmarking Network of Canada](#) is a partnership of 16 cities and regions that produces annual performance reports as well as individual comparative reports for 37 different municipal service areas. Municipalities face unique challenges based on location, size, or other characteristics and while the benchmarking results may not be directly comparable, they nonetheless provide a very clear indication of municipal performance that can be used by municipal staff and councils to improve local performance.

Municipalities also conduct surveys of community members, asking for feedback on municipal services and ideas for efficiencies and enhancements. The City of St. Albert, Alberta (near Edmonton) reported on a [2019 community engagement survey](#) [15:45] that included measures of satisfaction with municipal services.

The City of Vancouver has a [VanDashboard](#), which presents performance data for 65 indicators related to services and municipal priorities.

New Directions in Municipal Policy and Service Delivery

Municipal policy-making and service delivery are influenced by tough questions about performance and impact (is the policy or program working as intended?) and by technology, innovation, and trends for different types of engagement and participation in governance.

Municipalities regularly engage in program reviews that assess the performance of a program and its underlying policy direction. Increasingly, these involve comparisons with other municipalities and

opportunities for input from service users and municipal stakeholders.

The use of technology has opened possibilities for increased accessibility and responsiveness in municipal services. Most municipalities have 3-1-1 phone systems that provide residents with a one-stop access to information and help with non-emergency municipal services. Most also have online 3-1-1 access and apps for community members to report issues with garbage pickup, potholes, or other location-specific problems. Information from these reports provides data that can inform municipal policy and service-related decision-making. The City of Guelph has a myGuelph digital one-stop app for municipal services and information as explained by Mayor Cam Guthrie in this optional short video, [MyGuelph Asks What Digital Services Will Make Your Life Easier?](#) [2:08]. Note: the video is only available on Facebook and it is not close captioned.

The City of Toronto is involved in a shift to a user- or customer-oriented management system that will give Toronto residents personal online accounts through which they can register for programs, pay parking tickets, and deal with any municipal business. “The new approach will be based on user experience, not individual departments” (Lorinc, 2020) and represents a different way of thinking about the relationship that citizens can have with municipalities.

Municipalities hold charettes to encourage developers to work on apps and innovations that will improve municipal services. Municipalities analyze usage and performance data about existing services to inform decision-making and pilot different approaches and new platforms.

Municipalities are also engaging differently with community members and interests. People-centred policy and service delivery gathers input from service users about what they need and how they use programs and services. Deliberative dialogue is another approach used by a number of Canadian municipalities to address complex policy and service delivery challenges. Module 10 will include more discussion of these and other efforts to better engage community members and interests.

Open data provides access to data and information from other municipalities about what they are doing. There are innovation networks and awards –the Town of Raymond was the [2019 Municipal Innovation Award recipient](#) for its efforts toward net-zero energy. They installed 2,826 solar panels in the community and have reduced emissions by over 800 tonnes/year, saving \$150,000/year (Municipal Innovation Award, 2019). Organizations such as [Future Cities Canada, now Evergreen](#), promote different ways of tackling municipal service and policy questions. Future Cities Canada advances a systems approach to change through understanding the full range of factors that are affecting an issue, new ways of looking at the problem (through data and learning from others), opportunities to connect complex issues, and new systems of governance and decision-making that support participation from stakeholders.

Summary

Municipalities have important policy and service delivery roles – they are the closest to communities and are seen by communities as the front-line responders. However, there are many local needs and limited municipal resources, and municipalities must determine priorities, set policy, and deliver effective and efficient services and programs.

Policy and service delivery are connected to relationships that municipalities have with communities, with other municipalities, and with other levels of government. Policy and service delivery are influenced by the structure of local government and municipal finance and resource capacity. The process of

developing policy is complex and messy, involving many actors, and is influenced by a broad range of internal and external factors. The process of service delivery also involves different actors and delivery agents and can be influenced by similar internal and external factors as that of policy.

Key Takeaways

- Policy is a political process that determines a course of action or inaction to address a public problem (Pal, 2009; Manning, 2008).
- While we often describe policy processes as a neat progression through stages of development, it is far from rational. The module presented three alternatives to rational policy processes – incrementalism, garbage can theory, and punctuated equilibrium.
- Municipal policy development is complex. There are many internal and external influences on municipal policy and many policy actors. The approval processes are far from simple.
- Policy tools fall under three main types – non-decision, indirect action, and direct action. Municipalities often use multiple tools to address a policy issue.
- In addition to challenges related to lack of resources, differing perspectives on values and approach, and legal and jurisdictional constraints, there are additional constraints associated with the structure of municipalities, the municipal policy actors, and the process itself that put pressure on municipal policy.
- Municipalities face increasingly complex problems but have limited capacity to address them. Municipalities are responding in different ways, including by working around the constraints through new relationships and multi-level governance. There is a difference of opinion as to whether municipalities are policy takers or policy makers.
- All Canadian municipalities offer general government services, firefighting, roads and traffic, water, sewage and garbage, recreation and culture, and planning and development. Other service responsibilities vary considerably based on the provincial municipal act. Ontario and Alberta have assigned some social service and health roles to municipalities.
- Municipalities deliver services directly using their own staff and facilities, through service contracts with nonprofit and for-profit organizations or public-private relationships, and through shared service arrangements.
- Municipal service issues reflect the traditional service responsibilities (described above) assigned to municipalities. Increasingly, issues like homelessness, poverty reduction, transit, and climate change are on the municipal service and policy agenda – these issues are not property-related and aren't purely local.
- Municipalities monitor the delivery of services in different ways,, including performance tracking, benchmarking, surveys, evaluations, and dashboards.

Coming Up Next

Next week we will focus on the critical relationship that local government has with the public. The module will build on earlier content on relationships, structures, and finances and connects with this module on policy and service delivery.

Discussions and Assignments

Week 9 Discussion

Read the Banning Plastic Bags case study and the example of Victoria, B.C. (pages 271–275).

Please see the discussion questions in the Week 9 discussion board. Share your thoughts on how you would vote and whether there are any other options that should be considered by Victoria City Council.

Please see the Week 9 discussion topic in your D2L course for further instructions.

Note: You can access the Discussion Forums & Topics from the Communications menu in your D2L course.

Please make sure that your participation in all discussion forums adheres to the Toronto Metropolitan University online etiquette guidelines listed in the Course Outline.

Reminder

- There is no assignment due this week.
- A friendly reminder that Assignment 2 is due at the end of Week 10. You can find details in the Assignments section of the Course Materials area in D2L.

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